

of Sheffield, the University of Birmingham and the University of Bristol.

Short title. 2. This Act may be cited as the Representation of the People (Reading University) Act, 1928, and shall be included among the Acts which may be cited together as the Representation of the People Acts.

CHAPTER 26.

An Act to amend the provisions of the Supreme Court of Judicature (Consolidation) Act, 1925, relating to probate registrars and registries, and certain other matters, and to amend the law with respect to the constitution of the Judicial Committee of the Privy Council, and otherwise with respect to the administration of justice and matters connected therewith.

[3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

AMENDMENTS OF 15 & 16 GEO. 5. C. 49, AS TO PROBATE REGISTRARS AND REGISTRIES.

Qualifica-
tion of pro-
bate and
district
probate
registrars,
and tenure,
&c. of
district
probate
registrars.

1.—(1) The following subsection shall be substituted for subsection (3) of section one hundred and twenty-six of the Supreme Court of Judicature (Consolidation) Act, 1925 (in this Act referred to as “the principal Act”):—

“(3) A person shall not—

(a) be qualified to be appointed a probate registrar, unless he is a practising barrister or solicitor of not less than ten years' standing, or a district probate registrar of not less than five years' standing, or has

served not less than ten years as a clerk in the principal probate registry: 15 & 16
Geo. 5. c. 49.

(b) be qualified to be appointed a district probate registrar unless he is a practising barrister or solicitor of not less than five years' standing, or a probate registrar, or has served not less than ten years as a clerk in the principal probate registry or a district probate registry."

(2) In Part I. of the Third Schedule to the principal Act after the words "Registrar, Probate Division" there shall be added the words "(not including a district probate registrar)," and the principal Act shall be deemed as from the commencement thereof to have had effect as if the said words had been contained therein as originally enacted.

(3) The following subsection shall be added at the end of section one hundred and nineteen of the principal Act:—

"(3) This section shall in relation to a district probate registrar have effect as if for the words 'if appointed since the commencement of the Supreme Court of Judicature Act, 1884,' there were substituted the words 'if appointed on or after the first day of October, nineteen hundred and twenty-eight'." 47 & 48
Vict. c. 61.

(4) The following new section shall be inserted after section one hundred and twenty-eight of the principal Act:—

"128A.—(1) A district probate registrar shall be an officer of the Supreme Court, and (except in the case of a part-time or provisional registrar) shall be deemed for all purposes to be a permanent civil servant of the State.

(2) If in any case it appears to the President of the Probate Division that the business to be performed in any district probate registry is not such as to require the services of a whole-time registrar, he may, notwithstanding anything in this Act, appoint a person to act as part-time registrar, and a person so appointed shall be entitled to a salary under this Part of this Act, notwithstanding that he has been admitted to his

office without a certificate from the Civil Service Commissioners.

(3) On a vacancy occurring in the office of a district probate registrar, any person, being a person qualified for appointment as district probate registrar, may be appointed to act as provisional district probate registrar for such period, not exceeding six months from the date on which the vacancy occurs, as the President of the Probate Division may direct and with such remuneration as the President, with the concurrence of the Treasury, may determine."

(5) In section one hundred and twenty of the principal Act (which provides that officers of the Supreme Court shall not practise as barristers or solicitors) there shall be substituted for the words "district probate registrars" the words "any part-time district probate registrars."

Temporary provision as to retiring allowances of district probate registrars.

2.—(1) The following provisions shall have effect in relation to any district probate registrar who was appointed before the date of the commencement of this Part of this Act and who, having either before that date or within such period after that date as the President of the Probate, Divorce and Admiralty Division of the High Court, with the concurrence of the Treasury, may prescribe, applied to be allowed to retire from his office, is allowed by the President, with the concurrence of the Treasury, to retire therefrom at some specified date, and so retires:—

(a) If the registrar is one to whom a certificate has been issued by the Civil Service Commissioners, he shall, in addition to the annual compensation allowance for which he may be eligible under the Superannuation Acts, 1834 to 1919, be entitled to a lump sum equal to whichever of the two following amounts is the less, that is to say:—

(i) the amount of the difference between the capitalised value of that annual allowance and the capitalised value of two-thirds of the annual salary on which the said annual allowance is computed (both the said values being calculated in accordance with the tables for

life annuities issued by the National Debt Commissioners); or

(ii) the amount of the annual salary of the registrar at the date of his retirement;

- (b) If the registrar is one in whose case a certificate has not been so issued, the Treasury may grant to him by way of compensation such gratuity, not exceeding twice the amount of the salary received by him during his last year of employment, as may seem to them just:

Provided that in the case of a registrar who has not been required to devote his whole time to his employment as a registrar, the foregoing provision shall have effect as if one-and-a-half times the amount of the salary were substituted for twice the amount of the salary.

(2) The decision of the Treasury on any question which arises as to the application of this section to any person, or as to the amount of the compensation allowance, lump sum or gratuity to which a person to whom this section applies is entitled, shall be final, and for the purposes of calculating the amount of the compensation allowance, lump sum or gratuity to be granted to any such person the annual salary of that person at the date of his retirement and for each of the last three years of his employment shall be deemed to include an amount equal to the average annual amount of any agency fees received by him during the three years ending on the thirty-first day of December, nineteen hundred and twenty-five, and any amount so included shall be deemed to have been wholly paid out of moneys provided by Parliament.

3. The following subsection shall be substituted for subsection (2) of section one hundred and nine of the principal Act:—

“(2) The clerks in a district probate registry shall be appointed by, and shall be removable by, the President of the Probate Division, and shall accordingly be deemed (subject always to the provisions of this Act) to be officers of the Supreme Court:

Appoint-
ment and
status of
clerks in
district
probate
registries.

Provided that the provisions as to officers of the Supreme Court contained in subsection (1)

of section one hundred and ten, section one hundred and eleven and subsection (1) of section one hundred and eighteen of this Act shall not have effect in relation to such clerks, and notwithstanding anything in section one hundred and nineteen of this Act any such clerk shall, if the President with the approval of the Treasury so directs, be entitled to a salary under this Part of this Act notwithstanding that he has been admitted to his office without a certificate from the Civil Service Commissioners."

Super-
annuation
allowances
of clerks
in district
probate
registries.

4. The following section shall be inserted after section one hundred and nine of the principal Act:—

"109A.—(1) Subject to the provisions of this section, employment as a clerk in a district probate registry shall, on whatever date the employment commenced, be deemed to be for all purposes employment in the civil service of the State, and if a certificate has been issued to him by the Civil Service Commissioners allowances may be granted in his case accordingly under the Superannuation Acts, 1834 to 1919:

Provided that, except in so far as the Treasury may direct, no account shall be taken for the purposes of this section of service before the issue of the certificate.

(2) Where a person who was immediately before the first day of October, nineteen hundred and twenty-eight, employed as a clerk in a district probate registry is required by reason only of his having attained any age to retire from service as such a clerk, the Treasury may, if he has been required to devote his whole time to employment as such a clerk and if he had attained the age of fifty-five years before the eighteenth day of January, nineteen hundred and twenty-seven, grant to him by way of compensation such gratuity, not exceeding twice the amount of the salary received by him during his last year of employment, as may seem to them just.

(3) Where any person to whom by virtue of this section any allowance or gratuity may be granted has during the whole or any part of the

three years immediately preceding his retirement been in receipt of agency fees, his annual salary for those three years or that part of those three years shall, for the purposes of this section, be deemed, if the Treasury so direct, to include an amount not exceeding the average annual amount of any agency fees received by him during the three years ending on the thirty-first day of December, nineteen hundred and twenty-five, or, in the case of a clerk whose grade was changed at any time between the first day of January, nineteen hundred and twenty-three, and the eighteenth day of January, nineteen hundred and twenty-seven, during a period of three years ending on such later date as the Treasury may think proper to fix, and any amount so included shall be deemed to have been wholly paid out of moneys provided by Parliament.

(4) The decision of the Treasury on any question which arises as to the application of this section to any person or as to the amount of any superannuation allowance or gratuity thereunder shall be final."

5. This Part of this Act shall come into operation on the first day of October, nineteen hundred and twenty-eight. Commence-
ment.

PART II.

GENERAL AMENDMENTS OF 15 & 16 GEO. 5. C. 49.

6. The following subsection shall be inserted at the end of section four of the principal Act:— Jurisdiction
of Divisions
of High
Court.

"(4) Without prejudice to the provisions of this Act relating to the distribution of business in the High Court, all jurisdiction vested in the High Court under this Act shall belong to all the Divisions alike."

7. After section sixty of the principal Act there shall be inserted the following section:— Power of
Lord Chan-
cellor to
direct that
business
shall cease
to be

"60A.—(1) Where by any enactment, rule or order any proceedings are directed to be transacted or disposed of by or under the direction of a special judge or judges of the High Court,

assigned to
special
judge.

the Lord Chancellor may, if at any time it appears to him desirable so to do, with a view to the more convenient administration of justice, by order direct that notwithstanding any such enactment, rule or order such proceedings may be transacted and disposed of by or under the direction of any one or more of the judges of the High Court :

Provided that an order shall not be made under this subsection except with the concurrence of the President of the Division to which the jurisdiction with respect to the proceedings is at the time assigned."

" (2) Any order made under this section may at any time be revoked, varied or amended by a subsequent order so made."

Amendment
of s. 99 of
principal
Act.

8. Section ninety-nine of the principal Act (which relates to rules of court) shall be amended as follows :—

(1) At the end of paragraph (d) of subsection (1) thereof there shall be inserted the words "and
" for providing that any interlocutory applica-
" tion to be made in connection with or for the
" purpose of any appeal or proposed appeal
" to be heard by a divisional court shall be
" heard and disposed of before a single judge";
and

(2) After the words " High Court " in paragraph (f) of subsection (1) thereof there shall be inserted the words "and the procedure on appeals from
" any court or person to the Court of Appeal
" or the High Court, and the procedure in con-
" nection with the transfer of proceedings from
" any inferior court to the High Court or from
" the High Court to an inferior court ".

Amendment
of s. 162 of
principal
Act.

9. In section one hundred and sixty-two of the principal Act (which makes provision with respect to the exercise of the discretion of the court in granting administration), the following proviso shall be substituted for the proviso to subsection (1) thereof :—

" Provided that—

(a) where the deceased died wholly intestate as to his estate, administration shall be granted to some one or more persons interested in the residuary estate of the deceased, if they

make an application for the purpose, and as regards lands settled previously to the death of the deceased, be granted to the trustees, if any, of the settlement, if willing to act; and

- (b) if, by reason of the insolvency of the estate of the deceased or of any other special circumstances, it appears to the court to be necessary or expedient to appoint as administrator some person other than the person who, but for this provision, would by law have been entitled to the grant of administration, the court may in its discretion, notwithstanding anything in this Act, appoint as administrator such person as it thinks expedient, and any administration granted under this provision may be limited in any way the court thinks fit; ”

and the principal Act shall be deemed always to have had effect as if the proviso hereby directed to be inserted had been contained in the said subsection (1) as originally enacted.

10. Section one hundred and sixty-nine of the principal Act (which relates to the resealing of Irish grants) shall be amended by inserting after the words “Northern Ireland” in subsection (1) thereof the words “in respect of the personal estate of a person who died domiciled in Northern Ireland,” and by inserting after the words “together with the grant” in subsection (3) thereof the words—

Amendment
of s. 169 of
principal
Act.

“(a) a certificate under the hand of the proper officer of the High Court of Justice in Northern Ireland that a bond has been given to that Court in a sum sufficient to cover the property in England as well as in Northern Ireland in respect of the grant to be resealed; and

“(b) ”

11. The following shall be substituted for section one hundred and seventy of the principal Act (which provides that there shall be one place for the deposit of original wills and certain other documents):—

Places for
deposit of
original
wills and
other docu-
ments.

“ 170. All original wills and other documents which are under the control of the High Court

either in the principal probate registry or in any district probate registry, shall be deposited and preserved in such places as the President of the Probate Division, with the consent of the Lord Chancellor, may direct, and any wills or other documents so deposited shall, subject to the control of the High Court and the provisions of probate rules and orders, be open to inspection."

Provisions
as to bonds
given under
order of
court.

12. The following section shall be inserted after section two hundred and nineteen of the principal Act:—

"219A.—(1) A bond to be given by any person under or for the purposes of any order of the Court of Appeal or the High Court shall be given, except where otherwise expressly provided in this Act, in such form and to such officer of the court, and by such official name, as may be prescribed, with, if the court so requires, one or more sureties, and that officer shall as such have power to enforce any such bond or to assign it, in accordance with the provisions of this section to some other person.

(2) Where by rules of court made for the purposes of this section an officer is at any time substituted for the officer theretofore prescribed as the officer to whom bonds of any class are to be given, such rules may provide that bonds of that class given before the rules come into operation shall have effect as if the official name of the substituted officer were therein inserted in lieu of that of the officer theretofore prescribed.

(3) Where it appears to the satisfaction of the court that the condition of a bond given in accordance with the provisions of this section has been broken, the court may, on an application in that behalf, order that the bond shall be assigned to such person as may be specified in the order and the person to whom the bond is ordered to be assigned shall be entitled by virtue of the order to sue thereon in his own name as if it had been originally given to him, and to recover thereon as trustee for all persons interested the full amount recoverable in respect of the breach of the condition thereof."

PART III.

JUDICIAL COMMITTEE.

13. So much of the Judicial Committee (Amendment) Act, 1895, as imposes a limit on the number of persons who may become members of the Judicial Committee of the Privy Council by reason of that Act, as amended by any subsequent enactment shall cease to have effect, and accordingly subsection (2) of section one of that Act and subsections (1) and (3) of section three of the Appellate Jurisdiction Act, 1913, shall be repealed.

Repeal of
limit on
number of
dominion
judges who
may be
members of
Judicial
Committee.
58 & 59 Vict.
c. 44.
3 & 4 Geo. 5.
c. 21.

PART IV.

MISCELLANEOUS PROVISIONS AS TO MATTERS CONNECTED
WITH THE ADMINISTRATION OF JUSTICE.

14.—(1) Subject as hereinafter provided in this section, the following provisions shall have effect with respect to the office of the Vice-Chancellor of the County Palatine of Lancaster :—

- (a) a person shall not be qualified for appointment to the office unless he is a barrister of at least ten years' standing :
- (b) the appointment to the office shall be made by deed under the hand and seal of the Chancellor of the Duchy and County Palatine of Lancaster (in this section referred to as " the Chancellor "), unless the Chancellor otherwise determines :
- (c) the person appointed to the office shall before entering on the execution thereof take in the presence of the Chancellor the oath of allegiance and the judicial oath in the form prescribed by the Promissory Oaths Act, 1868 :
- (d) the holder of the office shall hold it during good behaviour, subject to a power of removal by His Majesty on an address presented to His Majesty by both Houses of Parliament :
- (e) the holder of the office shall take judicial precedence next after the Judges of the High Court :
- (f) the holder of the office shall not be capable of being elected to, or sitting or voting as a member of, the Commons House of Parliament :

Tenure of
office,
precedence
and qualifi-
cation of
Vice-
Chancellor
of County
Palatine of
Lancaster.

31 & 32 Vict.
c. 72.

(g) the holder of the office shall not at any time during his continuance therein practise at the Bar or act as arbitrator or referee for any remuneration to himself :

(h) the holder of the office shall have his permanent place of abode within such distance of the cities of Liverpool and Manchester as the Chancellor may from time to time direct.

(2) The foregoing provisions of this section, with the omission of paragraphs (a), (b) and (c), shall, notwithstanding anything in any Act, apply to the person who is the holder of the office of Vice-Chancellor at the date of the passing of this Act.

Transfer of
funds in
court to
Charity and
Ecclesiastical
Commissioners.

15.—(1) Any funds for the time being vested in the Accountant-General of the Supreme Court for and on behalf of the Supreme Court and held by him in trust for any charity subject to the jurisdiction of the Charity Commissioners or of the Board of Education, or in trust for any ecclesiastical corporation in the Church in England may, if the Lord Chancellor, on an application made in that behalf to the Accountant-General, as the case may be, either by the Charity Commissioners or the Ecclesiastical Commissioners, thinks fit so to direct, be transferred to the Official Trustees of Charitable Funds or the Ecclesiastical Commissioners, as the case may be; and any funds transferred under any such order shall be vested in and held by the Official Trustees of Charitable Funds or the Ecclesiastical Commissioners respectively in trust for the charity or ecclesiastical corporation upon the trusts upon which the funds were held before the transfer.

(2) Notwithstanding anything in the principal Act or in any rule or order made thereunder, no fees shall be payable under that Act or any such rule or order in respect of a transfer of funds made under this section.

(3) In this section—

The expression “ecclesiastical corporation” means any ecclesiastical corporation within the meaning of the Episcopal and Capitular Estates Act, 1851, and includes the incumbent of a benefice :

The expression "benefice" means a benefice with or without cure of souls, and includes rectories and vicarages, perpetual curacies and endowed public chapels, parochial chapelries and chapelries or districts belonging or reputed to belong or annexed or reputed to be annexed to any church or chapel.

16. The powers of a court under section five of the Guardianship of Infants Act, 1886, as amended by the Guardianship of Infants Act, 1925, to make orders regarding the custody of an infant and the right of access thereto of either parent, may be exercised upon the application of the father of an infant in like manner as those powers may be exercised upon the application of the mother of the infant.

Amendment
of Guardianship of
Infants Act,
1886.
49 & 50
Vict. c. 27.
15 & 16
Geo. 5. c. 45.

17. Section one hundred and fifty-four of the County Courts Act, 1888 (which regulates the sale of goods taken in execution), shall be amended by inserting therein after the words "put in possession by the bailiff" the words "or may be safeguarded in such other manner" as the high bailiff directs."

Amendment
as to custody
of goods taken
in execution
in the county
court.
51 & 52 Vict.
c. 43.

18. Subsection (3) of section four of the County Courts Act, 1924, shall have effect, and be deemed always to have had effect, as if for the proviso to the said subsection there were substituted the following:—

Amendment
of s. 4 of
County
Courts Act,
1924.
14 & 15 Geo.
5. c. 17.

"Provided that, if a registrar who was, immediately before his appointment as registrar, an assistant registrar or a civil servant, gives notice in the prescribed form within the prescribed period of his desire to continue, in the case of an assistant registrar subject to the provisions of this Act relating to the pensions of persons in court service, or in the case of a civil servant subject to the statutory provisions relating to the pensions of civil servants, he shall, for the purposes of pension, be deemed not to be a registrar to whom this section applies, but to be a person employed in court service or a civil servant, as the case may be."

PART V. —

GENERAL.

Minor
amend-
ments of
15 & 16
Geo. 5. c. 49,
51 & 52 Vict.
c. 43, and
16 & 17 Vict.
c. 20.

19.—(1) The amendments specified in the second column of Part I of the First Schedule to this Act (being amendments consequential on the provisions of this Act and amendments relating to matters of minor detail) shall be made in the provisions of the principal Act specified in the first column of that Part of that Schedule.

(2) The amendments specified in the second column of Part II of the First Schedule to this Act (being minor amendments of the County Courts Act, 1888) shall be made in the provisions of that Act specified in the first column of that Part of that Schedule.

(3) The amendment specified in the second column of Part III of the First Schedule to this Act (being a minor amendment of the Legitimacy Act, 1926) shall be made in the provisions of that Act specified in the first column of that Part of that Schedule.

Short title,
repeal,
construc-
tion and
printing.

20.—(1) This Act may be cited as the Administration of Justice Act, 1928.

(2) The enactments set out in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) This Act (except so much thereof as amends the Guardianship of Infants Acts, 1886 and 1925,) shall not apply to Scotland.

(4) This Act shall not apply to Northern Ireland.

(5) Every enactment and word which is directed by Parts I and II and this Part of this Act to be substituted for any portion of the principal Act shall form part of that Act in the place assigned to it by those Parts of this Act, and the principal Act shall be construed as if the said enactment or word had been enacted in the principal Act in the place so assigned and had been enacted in lieu of the enactment or word for which it is substituted.

A copy of the principal Act with the amendments effected by Parts I and II and this Part of this Act shall

be prepared and certified by the Clerk of the Parliaments and deposited with the Rolls of Parliament, and His Majesty's printer shall print in accordance with the copy so certified all copies of the principal Act which are printed after the date on which those amendments respectively take effect.

SCHEDULES.

FIRST SCHEDULE.

Section 19.

PART I.

AMENDMENTS OF THE SUPREME COURT OF JUDICATURE (CONSOLIDATION) ACT, 1925.

Enactment amended.	Amendment.
Section 57	- In subsection (1), for the word "matter" there shall be substituted the word "proceeding."
Section 112	- In subsection (1) after the word "principal" there shall be inserted the words "or a district."
Section 115	- In subsection (1), for the words "twenty-eight" there shall be substituted the words "twenty-seven."
Section 116	- In subsection (4) for the words "appointed before the commencement of this Act by virtue of the Court of Probate Act, 1857, or the Court of Probate Act, 1858, or appointed after the commencement of this Act by virtue of the corresponding provisions of this Act" there shall be substituted the words "holding any office a vacancy in which is to be filled under the provisions of this Act by the President of the Probate Division."
Section 118	- In subsection (1) after the words "to this Act" there shall be inserted the words "or with respect to officers employed in district probate registries."
Section 161	- In subsection (5), after the word "whether" there shall be inserted the words "the testator or"

1ST SCH.
—cont.Enactment
amended.

Amendment.

- Section 167 In subsection (4) there shall be substituted for the words “is assigned in pursuance of “the order” the words “ordered to be “assigned,” and there shall be inserted after the word “entitled” the words “by “virtue of the order.”
- Section 171 - For the words from “obtained” to the end of the section there shall be substituted the following :
 “ (a) from the registry in which the will or documents relating to the grant are preserved ; or
 (b) where the will or other document is preserved in some place other than a registry, from the principal probate registry ; or
 (c) subject to the approval of the principal probate registrar, from the principal probate registry in any case in which the will was proved in or the grant was issued from a district probate registry.”
- Section 213 - In subsection (2) the words “except in the “case of the fees to be taken in connection “with non-contentious probate business” shall be omitted.
- First Schedule - After the provision relating to the Common Law Procedure Act, 1852, there shall be inserted the following provision :—
- | | | |
|---------------------------|--|--|
| “ 20 & 21 Vict.
c. 43. | The Summary Jurisdiction
Act, 1857. | Sections two, three,
eight, ten and
eleven.” |
|---------------------------|--|--|

PART II.

AMENDMENTS OF THE COUNTY COURTS ACT, 1888.

- Section 71 - For the words “the Treasury” there shall be substituted the words “the Lord Chancellor.”
- Section 158 - After the words “shall then be or believed to be, with a warrant,” there shall be inserted the words “thereon endorsed or,” and the words “hand of the high bailiff and” shall cease to have effect.
- Section 170 - This section shall cease to have effect.

PART III.

1ST SCH.
—cont.

AMENDMENT OF THE LEGITIMACY ACT, 1926.

Section 2 - - For the words "the Legitimacy (Declaration) Act, 1858" there shall be substituted the words "section one hundred and eighty-eight of the Supreme Court of Judicature (Consolidation) Act, 1925."

SECOND SCHEDULE.

Section 20.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
51 & 52 Vict. c. 43.	The County Courts Act, 1888.	In section seventy-one the word "Treasury"; in section one hundred and fifty-eight the words "hand of the high bailiff and"; and section one hundred and seventy.
53 & 54 Vict. c. 23.	The Chancery of Lancaster Act, 1890.	Section seven.
14 & 15 Geo. 5. c. 17.	The County Courts Act, 1924.	The proviso to subsection (3) of section four.
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act, 1925.	In subsection (1) of section fifty-seven the word "matter"; subsection (2) of section one hundred and nine; in subsection (1) of section one hundred and fifteen the words "twenty-eight"; in subsection (4) of section one hundred and sixteen the words "appointed before the commencement of this Act by virtue of the Court of Probate Act, 1857, or the Court of Probate Act, 1858, or appointed after the commencement of this Act by

2ND SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
15 & 16 Geo.5. c. 49—cont.	The Supreme Court of Judicature (Consolidation) Act, 1925—cont.	“ virtue of the corresponding provisions of “ this Act ”; subsection (3) of section one hundred and twenty-six; the proviso to subsection (1) of section one hundred and sixty-two; section one hundred and seventy; in subsection (2) of section two hundred and thirteen the words “ except in the case of the “ fees to be taken in connection with non-contentious probate business.”

CHAPTER 27.

An Act to prohibit the use of young persons in the conveyance or delivery of messages or information relating to betting; and for purposes connected therewith. [3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Prohibition of the use of young persons in the conveyance or delivery of messages or information relating to betting.

1.—(1) Any person who causes or procures or attempts to cause or procure any young person to convey or deliver any slip, note or message, verbal or written, which relates to any bet or wager, or to convey or deliver any information, advice or money for the purpose of making or procuring the making of any bet or wager, or which relates to any bet or wager already made, to any bookmaker, and any bookmaker who accepts from a young person any such slip, note, message, information, advice or money, shall each be guilty of an offence and shall be liable, on conviction by a court of summary jurisdiction, to imprisonment with or without